



Appeal Decision

Site visit made on 11 August 2026

by R Gee BA (Hons) Dip TP PGCert UD MRTPI

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal Ref: 6010682

Land North East Of 7 Redmoor Lane, Wisbech, Cambridgeshire PE14 0RN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Zena Livesey against the decision of Fenland District Council.
 - The application Ref is F/YR26/0184/F.
 - The development proposed is Change of use of land for domestic purposes, and the siting of a static caravan and erection of a shed (retrospective).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. At the time of my site visit I observed the static caravan and shed to be present on site.
3. On 17 August 2026 a new Framework was published. As this could affect the issues and matters in this case, the Council and the appellant were invited to make further comments. My decision reflects the latest version of the Framework, and the responses received on it.

Main Issues

4. The main issues are:
 - i) whether a suitable location for development having regard to local and national planning policies;
 - ii) the effect of the proposal on character and appearance; and
 - iii) whether future occupiers of the proposed development would be safe from flooding and whether the proposal would comply with national and local planning policies which seek to steer new development away from areas at the highest risk of flooding.

Reasons

Location

5. Policy LP1 of the Fenland Local Plan 2014 (LP) seeks to deliver sustainable growth. Policy LP3 of the LP sets out the district-wide spatial strategy where the focus for the majority of growth to be in and around its four market towns. The application site is located in an 'Elsewhere' location, where development is

restricted to that which is essential for agriculture, or other uses requiring a rural location. This LP policy is broadly consistent with the Framework insofar as it seeks to avoid isolated homes in the countryside unless in accordance with certain circumstances including where there is an essential need for a rural worker to live permanently at or near their place of work in the countryside.

6. Part D of Policy LP12 of the LP sets out that when considering proposals for residential uses in areas away from the market towns and villages the applicant should provide supporting evidence and explain a number of criteria a) – f) to justify development in such circumstances. Part E of the said Policy states that applications for mobile homes will be considered in the same way as permanent homes, including subject to flood risk considerations.
7. The Planning Practice Guide (PPG) advises considerations which may be taken into account when determining whether there is an essential need to live on, or near, the site can include to ensure the effective operation of the enterprise for instance, where animals require on-site attention 24-hours a day and where, otherwise, there would be a risk to animal health, or from crime.
8. In their appeal submission the Appellant advances justification that was not previously before the Council. Initially the proposal was advanced as ancillary accommodation whereas now it is presented that the static caravan provides accommodation functionally connected to, and in support of, a genuine land-based use of the holding, which falls squarely within the categories of agriculture and horticulture that Policy LP3 expressly supports in 'Elsewhere' locations.
9. The Procedural Guide for Planning Appeals is clear that the appeal process should not be used to evolve a scheme, and it is important that what is considered is essentially what was considered by the Council, and on which interested people's views were sought. Under the principles established by the Courts in *Holborn Studios Ltd*¹ to consider such a modification could procedurally prejudice interested parties by depriving those who should have been consulted on the change the opportunity of such consultation. However, I note 'ancillary' was not included in the description of development and that the Council has commented on this reasoning in terms of its response to the appeal. I shall therefore consider the justification now put forward.
10. The Appellant cites the keeping of livestock requires daily attendance, and that in times of lambing/kidding and in adverse weather, attendance at unsocial hours and short notice is required and that a presence on the holding is of practical value to animal welfare and the proper management of the stock and the land. It is also advanced that there is a well-documented and increasing problem of live-stock theft across the Fenland areas and that a presence on site would be a meaningful deterrent against theft of stock and equipment.
11. Whilst I do not dispute that an on-site presence would aid animal welfare and management of the holding, in the absence of any robust evidence in respect of the holdings needs and current support it is afforded, it has not been sufficiently demonstrated that there is an essential need for a worker to live on-site. Furthermore, having regard to the extent of the red-line application site, which seeks the change of use of the land to domestic purposes, it is unclear to what extent any agricultural use or function of the holding would remain.

¹ *Holborn Studios Ltd v The Council of the London Borough of Hackney* [2017] EWCH 2823 (Admin)

12. While the Appellant indicates their agreement to the imposition of planning conditions to secure the rural-enterprise link, I do not consider that such conditions would overcome the harms identified.
13. Consequently, the proposal does not fall within the list of exceptions for development in such locations. Whilst the appeal site being proximate to existing built form would not be in an isolated location in the context of the Framework this does not overcome the conflict with Policies LP1, LP3 and LP12 of the LP.
14. I therefore conclude that the proposal would conflict with the district-wide spatial strategy and accordingly would not be in an appropriate location having regard to local and national planning policies. This draws the proposal into conflict with Policies LP1, LP3 and LP12 of the LP.

Character and appearance

15. The appeal site forms part of a land holding used for small livestock and mixed-species fruit orchard. Whilst the Appellant submits that the static caravan is located on mown land forming part of their garden, no substantive evidence has been provided to demonstrate that the site forms part of a lawful residential curtilage. Based on my observations, the land has the appearance of agricultural land, being physically separate from the main residential area (circa 106 metres) and lacking the defining characteristics typically associated with domestic garden land. Furthermore, the description of development includes the change of use of land for domestic purposes. I therefore afford limited weight to the Appellant's assertion in this regard. Nevertheless, nothing in this decision would preclude the Appellant from applying for a Certificate of Lawfulness or otherwise seeking to establish the lawful status of the existing caravan and shed through the appropriate statutory procedures should they consider that sufficient evidence exists to do so.
16. Notwithstanding its limited height, the mobile home would be of considerable width and would display a distinctly domestic appearance by virtue of its design and external finish. Moreover, the introduction of a residential unit and associated activity into an undeveloped field would result in the domestication of the site, causing harm to its rural character and appearance. While the appeal site benefits from heavily vegetated boundaries the development is, nonetheless, visible from both Redmoor Lane and the A47, which lies immediately to the north of the appeal site. My attention has been drawn to other static caravans in the locality, stating that they form part of the established character of the area. However, I do not know if they are lawful or the circumstances in which they are sited.
17. Furthermore, the red line boundary encompasses an extensive area of land that is sought for residential purposes. The use of this land would be likely to introduce domestic features and paraphernalia, such as planting, garden furniture, storage and other domestic alterations, some of which may not require planning permission. The cumulative effect of such changes would be to impart a suburbanising influence that would be at odds with the site's existing agrestic character. Consequently, the proposed development, including the extent of the land, would undermine the rural character and appearance of the area.
18. I therefore conclude that the proposal would be harmful to the character and appearance of the area in conflict with Policies LP12 and LP16 of the LP. Amongst other things these policies seek development that makes a positive contribution to the local distinctiveness and character of the area, enhances its local setting,

responds to and improves the character of the local built environment, provides resilience to climate change, reinforces local identity and does not adversely impact, either in design or scale terms, on the street scene, settlement pattern or the landscape character of the surrounding area.

Flood Risk

19. The appeal site lies within Flood Zone 3a. Policy LP14 of the LP requires development in areas at risk of flooding to follow a sequential approach. Where applicable, proposals must pass the Sequential Test and Exception Test, demonstrate an identified need for the development, and be supported by a site-specific Flood Risk Assessment showing that the development can be made safe for its lifetime, would not increase flood risk elsewhere, and incorporates appropriate flood risk mitigation measures without reliance on emergency services. This stance is supported by the guidance contained within the Cambridgeshire Flood and Water SPD 2016.
20. The Framework states that inappropriate development in areas at risk of flooding should be avoided by directing development away from areas at highest risk, but where development is necessary, ensuring that it is safe for its lifetime without increasing flood risk elsewhere. Policy F5 of the Framework adopts a strengthened sequential approach to flood risk and requires the Sequential Test to be applied unless specific exemptions apply.
21. The Sequential Test forms the first stage of the Framework's approach to managing flood risk and seeks to steer development to areas at the lowest risk of flooding. The Sequential Test is not intended to ensure that development can never be approved in areas at risk of flooding, and a degree of flexibility and pragmatism may be required in its application. Where development cannot reasonably be located in lower-risk areas, the assessment should consider alternative reasonably available sites.
22. I acknowledge the Appellant's assertion that the sequential test relates to the mobile home rather than the shed. However, the appeal proposal must be considered as a whole. The shed forms part of the development for which permission is sought.
23. The Environment Agency object to the proposal. Having reviewed the FRA² they state that it has incorrectly classified the flood risk vulnerability as 'More vulnerable'. Whilst the mobile home is described as ancillary accommodation, the proposal is not a householder development within an existing residential curtilage. Rather it comprises a material change of use of land to residential use together with the siting of a mobile home. Accordingly, as a mobile home intended for permanent residential use Annex F of the Framework classifies the development as 'highly vulnerable'.
24. Furthermore, the EA advises that the submitted FRA does not include a specific assessment of residual risk to the site. The site is within an area which would be at risk if a breach was to occur. The nearest modelled breach point taken from the Fenland Strategic Flood Risk Assessment is located 470m from the site. The site falls within the 0.25m to 0.5m flood depth banding shown on the 2115 0.1% annual probability breach maps, which represent the most relevant data for single-storey

² Ref: FRA-2026-01; dated April 2026; submitted Taylor Planning & Building)

development. The site includes areas classified as both 'danger for some' and 'danger for most', with the proposed location of the mobile home falling within an area identified as 'danger for some', meaning conditions could be dangerous for vulnerable people due to the depth or velocity of floodwater.

25. I have found above that it has not been demonstrated that there is an essential need for a worker's dwelling to be located on this site. In those circumstances, and having regard to the sequential approach required by Policy F5 of the Framework, I am not satisfied that the proposal passes the Sequential Test. Whilst I appreciate that substantial parts of the district lie within Flood Zone 3, there is evidence before me that sites with extant permissions exist within Flood Zones 1 and 2. Moreover, there is no compelling evidence that the development must be located on this particular site.
26. Whilst the Appellant asserts that there is no record of Redmoor Lane having flooded, this does not alter the site's designation within Flood Zone 3, which is based on national flood risk mapping rather than the occurrence of past flooding events. The Appellant also indicates an intention to seek a site-specific review of the flood zone designation. However, no such evidence has been submitted as part of this appeal.
27. Whilst the caravan may, in principle, be capable of being moved and occupants may subscribe to the Environment Agency's Floodline warning service, these measures would not overcome my concerns regarding flood risk. Reliance on advance warning and evacuation procedures does not avoid the exposure of future occupiers to flood risk, nor is there persuasive evidence before me that the caravan could be safely and effectively relocated in the event of flooding. I therefore afford these considerations limited weight.
28. In the absence of sufficient evidence demonstrating an essential need for the dwelling to be located on this site, I am not satisfied that the proposal meets the requirements of the Sequential Test. Consequently, the proposal conflicts with the Framework in this regard.
29. As the Sequential Test has not been satisfied, it is unnecessary for me to reach a definitive conclusion on the Exception Test, which is only engaged where the Sequential Test has first been passed. Nevertheless, even were that not the case, the concerns raised by the Environment Agency regarding the vulnerability classification of the development and the lack of a satisfactory assessment of residual flood risk would weigh against a finding that the development would be safe for its lifetime.
30. For the reasons given above, I cannot be satisfied that the proposal would accord with the sequential approach to flood risk set out in the Framework or that future occupiers would be adequately protected from flood risk. The proposal therefore conflicts with Policies LP12, LP14 and LP16 of the LP, as well as the flood risk policies of the Framework.

Other Matters

31. I have considered the Appellant's personal circumstances that were initially advanced, including claims relating to deteriorating health and a need to secure a more permanent form of accommodation in order to settle and access support. However, there is no robust medical or other substantive evidence before me to

demonstrate the extent of the claimed need or the consequences arising from it. Whilst I have had regard to these matters, I attach them only limited weight and they do not alter my overall assessment of the proposal.

32. The lack of objection from the Town Council, Highways and internal drainage board and third parties is a neutral matter that weighs neither for or against the proposal.
33. It is not disputed that satisfactory parking, biodiversity enhancements or the provision of amenity areas would not be secured. However, these matters do not outweigh the harms identified.

Planning Balance and Conclusion

34. The revised Framework introduced a 'presumption in favour of sustainable development' for specific types of proposals outside of settlement boundaries in National Decision Making Policies (NDMP) S3 to S5, which replaces the presumption as detailed in the previous Framework.
35. In this case, the appeal site lies outside a settlement, and the proposal therefore falls to be considered against NDMP S5. S5 stipulates that only certain forms of development fall into the group of schemes that should be approved outside settlements "unless the benefits of doing so would be substantially outweighed by any adverse effects", including "development which would address an evidenced unmet need".
36. The proposal does not comprise one of the forms of development listed in S5(1) as being acceptable in the countryside. Whilst S5(4) provides that development may be approved in exceptional circumstances where the benefits would substantially outweigh the adverse effects, S5(2) explains that the circumstances in which benefits are likely to be substantially outweighed by adverse effects include, but are not limited to, situations where a proposal would fail to comply with a national decision-making policy which states that development proposals should be refused in specific circumstances.
37. I have found that the proposal fails the Sequential Test and therefore conflicts with the Framework's flood risk policies. As those policies provide a strong reason for refusal, I conclude that the proposal does not satisfy NDMP S5. In these circumstances, there is no need for me to undertake any further assessment as to whether exceptional circumstances exist under S5(4).
38. Drawing the above together, the proposal would conflict with the development plan when read as a whole and there are no material considerations, including the Framework, which would indicate a decision other than in accordance with it.
39. For the reasons given above I conclude that the appeal should be dismissed.

R. Gee

INSPECTOR